

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

April 9, 2018

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn (arriving at 6:10 p.m.), Mike Luna, Scott Roybal, Dr. Mark Rinne and Dicky Shanor. Absent: Jeff White. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Johnson, and pursuant to support received by Mr. Roybal and Mr. Cook, Agenda Item #18 was removed from the Consent Agenda. Mr. Roybal moved to approve remaining Consent Agenda items, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on March 26, 2018. Motion (per Consent Agenda) carried.

Mr. Roybal declared a conflict of interest (business interest in voucher payable to Cowboy Dodge, Inc.) and vacated Council Chambers. Mr. Johnson moved to approve payment of vouchers as presented, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Roybal returned to Council Chambers.

Mayor Orr opened a public hearing for the City of Cheyenne’s Annual Action Plan Fiscal Year 2018-2019 prepared by the Cheyenne Housing and Community Development Office. Deanne Widauf, Housing and Community Development, provided a brief overview of the history and purpose of the Community Development Block Grant program, noting the proposed plan is consistent with the 5-year Comprehensive Consolidated Plan, and stated the anticipated allocation funding amount is \$398,442.00 with \$1,000.00 in program income and \$56,000.00 in recaptured funding. Ms. Widauf explained the Tier system being utilized and reviewed information on the grant application process; public notifications and opportunities for input, and role of the Advisory Council in reviewing and recommending projects to be funded. She stated nine projects are being proposed and discussed the category type, funding amount and purpose for each project, and commented on program administration funding. Upon inquiry, Ms. Widauf advised the neighborhood involved in one of the projects (a street paving project) was located north of Dell Range, between Frontier Mall and Yellowstone Road. [City Clerk’s note: Councilman Laybourn joined the meeting] Patrice Gapen, Housing and Community Development Advisory Council member, stated the number of applications submitted were more than what could be funded, and

that the Advisory Council unanimously agreed on the projects to recommend. Ms. Gapen also noted the area that will receive paved roads had previously been a county pocket. Brief comment was made on county pockets. There being no further comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing.

Mayor Orr opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exists for Lot 14, Block 5, Homestead Addition, First Filing Replat, Laramie County, Wyoming (located south of Homestead Avenue, north of the Cheyenne Greenway). Seth Lloyd, Planning and Development Department, provided information on the property requested by the landowner to be annexed and reviewed requirements of and compliance with annexation conditions contained in state statutes. Upon inquiry, Mr. Lloyd explained it was his understanding that a portion of the property utilized for vehicle storage is not used by the land owner, but by an adjacent property owner. He stated if the proposed zone change in conjunction with the annexation is approved, it would prohibit the use of the land for vehicle storage. There being no further comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing.

Mayor Orr opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exists for a portion of Lot 1, Block 1, Cheyenne Hills Church Subdivision and portions of the east half of Section 25, T.14N., R.66W., of the 6th P.M., Laramie County, Wyoming (located north of and including Pershing Boulevard, east of Farthing Road; also located south of Sage Road, east of Gunsmoke Road). Seth Lloyd, Planning and Development Department, provided information on the property requested by the landowner to be annexed and reviewed requirements of and compliance with annexation conditions contained in state statutes. There being no further comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing.

ORDINANCE – 2nd READING – Amending Chapter 8.56, Noise Control, Section 8.56.060, Permit for relief from designated levels, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming. Astrid, The Plains Hotel, expressed concern with vehicle noise levels and speeding in the area of The Plains Hotel, and questioned whether the proposed ordinance would negatively impact the situation. Reporting for Finance Committee, Mr. Luna moved to approve on second reading, seconded by Mr. Cook. Upon inquiry, Carol Intlekofer, City Clerk, explained the proposed ordinance is affiliated with an ordinance change last year which streamlined business licensing processes, and that a change to this City Code section was inadvertently omitted from the previous ordinance, noting the proposed change is essentially a housekeeping measure. She further explained the ordinance's effect will result in the Police Chief being authorized to determine conditions affiliated with a noise permit instead of the Mayor. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 1st READING – Annexing to the City of Cheyenne, Wyoming, Lot 14, Block 5, Homestead Addition, First Filing Replat, situated in the N½ NE¼ Section 4, T.13N., R.66W., 6th P.M., Laramie County, Wyoming (located south of Homestead Avenue, north of the Cheyenne Greenway) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County MR Medium-Density Residential to NR-2 Neighborhood Residential - Medium-Density for Lot 14, Block 5, Replat of Homestead Addition, First Filing, Laramie County, Wyoming (located south of Homestead Avenue, north of the Cheyenne Greenway) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Annexing to the City of Cheyenne, Wyoming, a portion of Lot 1, Block 1, Cheyenne Hills Church Subdivision and portions of the east half of Section 25, T.14N., R.66W., of the 6th P.M., Laramie County, Wyoming (located north of and including Pershing Boulevard, east of Farthing Road; also located south of Sage Road, east of Gunsmoke Road) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County A-1, Agricultural and Rural Residential to MR, Medium-density Residential for a portion of Lot 1, Block 1, Cheyenne Hills Church Subdivision and portions of the east half of Section 25, T.14N., R.66W., of the 6th P.M., Laramie County, Wyoming (located north of and including Pershing Boulevard, east of Farthing Road; also located south of Sage Road, east of Gunsmoke Road) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from Conditional MUR, Mixed Use Residential Emphasis to NB, Neighborhood Business for a parcel of land consisting of all of Block 16, Hellmans Addition Subdivision, Cheyenne, Wyoming to be known as Peak Wellness Center (located at 510 West 29th Street, between O’Neil and Thomes Avenues) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Amending, creating, or deleting various chapters and sections within Title 15, Buildings and Construction, of the Cheyenne City Code relating to adoption of the National Electrical Code, 2017 Edition – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Amending Resolution No. 5808 by appointing the Mayor of the City of Cheyenne to serve on the Advisory Board of the participating municipalities of the Laramie State Small Business Credit Initiative (“SSBCI”) Consortium. Motion (per Consent Agenda) carried. (#5921)

[CA] RESOLUTION – Adopting the revised City of Cheyenne, Wyoming, Investment Policy and Portfolio Guidelines, February 26, 2018. Motion (per Consent Agenda) carried. (#5922)

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2018 budget of the City of Cheyenne according to the provisions of W.S. §§16-4-112 & 16-4-113. Motion (per Consent Agenda) carried. (#5923)

RESOLUTION – Acknowledging receipt of the Reed Avenue Rail Corridor Master Plan. Speaking in support of the Master Plan were: Vicki Dugger, Downtown Development Authority; Cari Cuffney (who also voiced support on behalf of Danielle and Mark Cullins who could not be present); Dave Teubner, Warehouse Twenty One; Andrew Rose, property co-owner in the West Edge vicinity; Amy Spieker; Affie Ellis, State Senator, District 8, and Astrid, owner, The Plains Hotel. Comments included the following topics: Master Plan's importance to development of the West Edge area; financial investments by business property owners; types of businesses that may be interested in locating in the West Edge; investing in revitalization of the downtown as well as the West Edge, and difference between acknowledging receipt vs. adoption of the plan. Tony Lucero, A & C Feed, voiced his concerns regarding the Master Plan and future access to property he owns along the rail corridor. Reporting for Public Services Committee, Mr. Roybal moved to acknowledge receipt, seconded by Mr. Shanor. Discussion followed on the 6th Penny ballot question that was approved for the Reed Avenue Corridor project; acknowledging receipt vs. adoption of the report; railroad easement that must be acquired, and moving forward with the Master Plan. During discussion and upon inquiry, Sylvia Hackl, City Attorney, provided her interpretation of the difference between "acknowledging receipt" vs. "adoption" of the plan. William Powell Haley, property owner in the area, questioned the effect of a railroad easement relative to his property boundaries. Providing information in response to inquiries were: Tom Mason, Director, Metropolitan Planning Organization, noting the plan reflects a 35% preliminary design, and Troy Russ, Kimley-Horn and Associates, planning and design engineering consultants, who provided information on working with the railroad regarding an easement, and determining any private property access issues. Mr. Laybourn moved to amend the pending motion from "acknowledging receipt" to "adopting". Motion died due to lack of a second. Comment was made that funding for the project was in place through voter approval of the 6th Penny ballot question. Motion to acknowledge receipt carried. Voting "yes" – all members of the governing body present. (#5924)

[CA] RESOLUTION – Adopting the City of Cheyenne Annual Action Plan 2018-2019 prepared by the Cheyenne Housing and Community Development office – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a County Final Plat for Hawk's Landing Subdivision, a replat of a portion of Tract 8, Capitol Tracts, being situated in a portion of the NE¼ NW¼, Section 18, T13N, R66W, of the 6th Principal Meridian, Laramie County, Wyoming (located west of and adjacent to York Avenue, south of West College Drive) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Precluding the rental or use of the City's athletic fields by Steve Avila or SAA Enterprises until those parties have repaid the City of Cheyenne and Cheyenne Mustangs Baseball for all losses sustained from the 2017 CABA World Series Tournament – referred to Finance Committee. (Sponsor – Mr. Laybourn)

[CA] Agreement by and between the City of Cheyenne, Cheyenne Civic Center, and the International Alliance of Theatrical Stage Employees, Moving Picture Technicians, Artists and Allied Crafts of the United States, Its Territories and Canada (IATSE), Local 229, for stagehand labor. Motion (per Consent Agenda) carried. (#6816)

[CA] Professional Services Agreement between the City of Cheyenne and Rebecca Velez for concessionaire services at the Converse Softball Complex, the Brimmer Softball Complex, the Cheyenne Junior League Baseball Complex and the Powers Field Baseball Complex (revenue to City) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Cheyenne Youth Baseball for concessionaire services at the Dutcher Baseball Complex (revenue to City) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Chicago Dog House for concessionaire services at the Pioneer Park Baseball Complex (revenue to City) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District Number One to provide drainage improvements on Sunflower Road adjacent to Buffalo Ridge Elementary School (Ward II Contingency and Engineering Drainage Funds) – referred to Finance Committee.

[CA] Contract Modification No. 3 to City Contract No. 6498 between the City of Cheyenne and DHM Design Corporation, Denver, CO, for professional services associated with the Civic Center Commons Project (FEMA Pre-Disaster Mitigation Grant and Wyoming Business Council Park Grant) – referred to Finance Committee.

[CA] Consideration of Bid #E-22-18 for the City's annual purchase of "Aggregates" (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Simon Contractors, Cheyenne, WY).

[CA] Consideration of Bid #E-23-18 for the City's annual purchase of "Hot Mix, Tack Oil and Cold Mix" (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from JTL Group, Inc. d/b/a Knife River, Cheyenne, WY).

[CA] Retail liquor license transfer of location application filed with the City Clerk's Office for Steamboat's, LLC d/b/a Steamboat's Wyoming Steak and Smoke House, from 1947 Dell Range Blvd. to 115 E. 17th St., Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

[CA] Consideration to purchase six Self Contained Breathing Apparatuses (SCBA) and affiliated equipment from L.N. Curtis & Sons, Salt Lake City, UT, for the Cheyenne Fire and Rescue Department (Homeland Security funds) – referred to Finance Committee.

[CA] Consideration to purchase twenty 20 premium ice bumper cars from IBC International, Steamboat Springs, CO, for the Community Recreation and Events Department, Ice and Events Center (2015-2018 1% Sales Tax) – referred to Finance Committee.

Under other business:

Major Dorr commented in support of Civic Center operational changes relative to a recent newspaper article, and expressed concern with loss of parking spaces in the west parking lot across from the Municipal Building and Civic Center as part of the Civic Center Commons Project.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:05 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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